IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V

Item No.-503
CP (CAA) No - 161/230/232/ND/2019

IN THE MATTER OF:
Givetake Trade and Credit Pvt. Ltd. and Indian Compressors Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 22.11.2021

CORAM:
SHRI ABNI RANJAN KUMAR SINHA
HON'BLE MEMBER (JUDICIAL)

SHRI AVINASH K. SRIVASTAVA,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Naresh Kumar, Advocate, Adv. Shankari Mishra for RD
For the Respondent : Sr. Standing Counsel Zoheb Hossain, Jr. Standing Counsel Parth Semwal and Vipul Agarwal with Sangha Shree Nath, Advocates For Income Tax Dept.

ORDER

Heard, Ld. Counsel appearing for the Petitioner, RD & OL and Income Tax Department. Ld. Counsel appearing for the RD submits that on 14.09.2021, the RD has submitted the report. The report of the RD filed on 14.09.2021 is available on the record. She further submits that she will get it verified from her record whether, it is the same report, which RD has submitted or not.

Ld. Counsel appearing for the OL submits that the Department has already submitted the report and the OL has no objection. Ld. Counsel for the Income Tax Department has submitted that the Department has submitted its report on 21.09.2021, and the Department has no objection. Ld. Counsel for the OL is well advised to get it verified from the Registry, if any defect is pointed out, remove the same.

In course of hearing, we notice that one of the Company is MSME. Therefore, the Petitioner is well advised to show us whether the petitioner has obtained no objection from the RBI or not. List the matter on **25.11.2021.**

-Sd/-

(AVINASH K. SRIVASTAVA)
MEMBER (T)

-Sd/-

(ABNI RANJAN KUMAR SINHA)
MEMBER (J)

Lalit